

SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS

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JOSE RIVERA,

Plaintiff,

-against-

CITY OF NEW YORK, JOSE ACEVEDO, Individually,
VASILI IGNATOV, Individually, and JOHN and JANE
DOE 1-10, Individually (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
NY, NY 10007

JOSE ACEVEDO, 8219
c/o NYPD Transit Brooklyn Task Force
518 Metropolitan Ave
Brooklyn, NY 11211

VASILY IGNATOV
c/o NYPD Transit
Brooklyn Task Force
518 Metropolitan Ave

Dated: New York, New York
March 16, 2020

BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiff
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By: Brett Klein
BRETT H. KLEIN

SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS

-----X

JOSE RIVERA,

VERIFIED COMPLAINT

Plaintiffs,

Index No.:

-against-

CITY OF NEW YORK, JOSE ACEVEDO, Individually,
VASILI IGNATOV, Individually, and JOHN and JANE
DOE 1-10, Individually (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff, JOSE RIVERA, by his attorneys, BRETT H. KLEIN, ESQ., PLLC, as and for
their Verified Complaint, alleges as follows:

1. Plaintiff is a thirty-two-year-old male resident of Brooklyn, New York, County of Kings.
2. The cause of action alleged herein arose in the State of New York, County of Kings.
3. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.
5. That at all times hereinafter mentioned, the individually named defendants, JOSE ACEVEDO, VASILIIY IGNATOV, and JOHN and JANE DOE 1 through 10, were duly sworn

police officers of said department and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

8. Within ninety (90) days after the claim herein accrued, plaintiffs duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

9. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

10. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

11. Plaintiff has complied with all conditions precedent to maintaining the instant action.

12. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

13. On July 17, 2018, at approximately 4:50 p.m., plaintiff JOSE RIVERA was playing music from a portable speaker, at a reasonable volume, onboard a southbound New York City #3 subway train.

14. At the time, NYPD police officers, including defendant officer JOSE ACEVEDO and JOHN DOE 1 through 4, were also aboard the train dressed in plainclothes.

15. Defendant ACEVEDO and JOHN DOE 1 through 4 confronted plaintiff regarding his music playing and subsequently ordered plaintiff to depart the train at the Saratoga Avenue station. Plaintiff complied.

16. The defendant officers thereafter issued plaintiff a summons and took his portable speaker without plaintiff's permission.

17. Believing his speaker was unjustifiably taken from him, plaintiff called 911 and reported that police officers had robbed him of his speaker.

18. Plaintiff specifically reported on the 911 call that approximately five police officers who were on his train, took him off the train, wrote him a ticket, then took his property and left.

19. Furthermore, plaintiff expressed on the call that he wished to file a police report that he was robbed by police officers. Plaintiff explained that his speaker was taken by police, and he agreed to be transferred to the NYPD Internal Affairs Bureau ("IAB") to make a complaint about his property.

20. Defendant ACEVEDO and, upon information and belief, defendants JOHN DOE 1 through 4 responded to the 911 call, and were present when plaintiff was about to make his complaint to IAB.

21. Defendant ACEVEDO, either with the assistance of, or in the presence of, defendants JOHN DOE 1 through 4, ended plaintiff's call, and arrested him for allegedly making a false report.

22. Plaintiff was thereafter taken to the 73rd Precinct, detained for approximately four hours, and then released with a desk appearance ticket maliciously issued to him without probable cause by defendant ACEVEDO.

23. Defendant ACEVEDO continued a malicious prosecution against plaintiff in Kings County Criminal Court by falsely swearing in a criminal court complaint that plaintiff purportedly committed the crime of falsely reporting an incident in the third degree.

24. The false evidence conveyed by defendant ACEVEDO to the Kings County District Attorney's Office ("KCDAO") was utilized against plaintiff in the ensuing prosecution, and resulted in a deprivation of plaintiff's liberty.

25. Specifically, as a result of defendant ACEVEDO's actions, plaintiff was forced to endure a false charge hanging over his head, and compelled to return to Court on at least four occasions, until December 18, 2018, when his case was dismissed and sealed on the motion of the KCDAO.

26. The KCDAO dismissed the charges against plaintiff's based on its receipt of the recording of plaintiff's 911 call, which conclusively proved plaintiff had truthfully reported what had happened to him, and thus that probable cause to arrest and prosecute plaintiff for making a false report was therefore lacking.

27. Defendant JOSE ACEVEDO and JOHN and JANE DOE 1-10 were acting under the color of law when they unlawfully arrested him and/or failed to intervene in said arrest, and

when defendant ACEVEDO initiated a malicious prosecution against him based on false information conveyed to the KCDAO.

28. Defendants ACEVEDO and JOHN and/or JANE DOE 1 through 10 either directly participated in the false arrest, manufacturing of evidence, and/or malicious prosecution of plaintiff or failed to intervene in said constitutional violations despite being present for and/or aware that said violations were occurring, and despite an opportunity to intervene.

29. Defendants VASIL Ignatov supervised ACEVEDO and JOHN and/or JANE DOE 1 through 10 and otherwise participated in the above unconstitutional acts and/or failed to properly monitor, train, and supervise said defendants.

30. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising its employees; and pursuant to customs or practices of falsely arresting individuals and falsification of evidence to support said arrests.

31. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers are insufficiently trained regarding probable cause to arrest and engage in a practice of falsification to support unlawful arrests.

32. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

33. Moreover, upon information and belief, defendant CITY OF NEW YORK was

aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

34. As a result of the foregoing, plaintiff JOSE RIVERA sustained, *inter alia*, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

State Law Claims

AS AND FOR A FIRST CAUSE OF ACTION

(Malicious Prosecution under the laws of the State of New York Against Defendants City and Acevedo)

35. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “34” with the same force and effect as if fully set forth herein.

36. Defendant JOSE ACEVEDO initiated, commenced and continued a malicious prosecution against plaintiff JOSE RIVERA.

37. Defendant JOSE ACEVEDO caused plaintiff JOSE RIVERA to be prosecuted without probable cause until the charges were dismissed and sealed on or about December 18, 2018.

38. Defendant City, as employer of defendant JOSE ACEVEDO, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

39. As a result of the foregoing, plaintiff JOSE RIVERA is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York Against Defendant City of New York)

40. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered “1” through “39” with the same force and effect as if fully set forth herein.

41. Defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of defendants, who falsely arrested plaintiff and purported false claims which lead to his prosecution.

42. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

43. As a result of the foregoing, plaintiff JOSE RIVERA is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York Against Defendant City of New York)

44. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “43” with the same force and effect as if fully set forth herein.

45. Upon information and belief, the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants and purported false claims which lead to his prosecution.

46. As a result of the foregoing, plaintiff JOSE RIVERA is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against

the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Federal Claims

AS AND FOR A FOURTH CAUSE OF ACTION

(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983 Against the Individually Named Defendants)

47. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "46" with the same force and effect as if fully set forth herein.

48. The individually named defendants arrested plaintiff JOSE RIVERA without probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

49. The individually named defendants caused plaintiff to be falsely arrested and unlawfully imprisoned.

50. As a result of the foregoing, plaintiff JOSE RIVERA is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION

(Malicious Prosecution under 42 U.S.C. § 1983 Against the Individually Named Defendants)

51. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "50" with the same force and effect as if fully set forth herein.

52. The individually named defendants initiated, commenced and continued a malicious prosecution against plaintiff JOSE RIVERA.

53. The individually named defendants caused plaintiff JOSE RIVERA to be prosecuted without probable cause until the charges were dismissed and sealed on or about

December 18, 2018.

54. As a result of the foregoing, plaintiff JOSE RIVERA is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Violation of Right to Fair Trial/Fabrication of Evidence under 42 U.S.C. § 1983 Against the
Individually Named Defendants)

55. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "54" with the same force and effect as if fully set forth herein.

56. Defendant ACEVEDO created false evidence against plaintiff JOSE RIVERA.

57. Defendant ACEVEDO utilized this false evidence against plaintiff JOSE RIVERA in legal proceedings.

58. As a result of defendant ACEVEDO's creation and use of false evidence, plaintiff JOSE RIVERA suffered a violation of his constitutional rights to a fair trial, as guaranteed by the United States Constitution.

59. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983 Against the Individually Named Defendants)

60. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "59" with the same force and effect as if fully set forth herein.

61. The individually named defendants had an affirmative duty to intervene on behalf

of plaintiff, whose constitutional rights were being violated in their presence by other officers.

62. The individually named defendants failed to intervene to prevent the unlawful conduct described herein.

63. As a result of the foregoing, plaintiff's liberty was restricted, he was put in fear of his safety, he was humiliated and subjected to handcuffing and other physical restraints, he was maliciously prosecuted, and his right to fair trial was denied.

64. As a result of the foregoing, plaintiff JOSE RIVERA is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983 Against Defendant Ignatov)

65. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "64" with the same force and effect as if fully set forth herein.

66. Defendant VASILIIY IGNATOV personally caused plaintiff's constitutional injury by participating in the constitutional violations suffered by plaintiff and being deliberately or consciously indifferent to the rights of plaintiff in failing to properly supervise and train his subordinate employees.

67. As a result of the foregoing, plaintiff JOSE ACEVEDO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

68. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “67” with the same force and effect as if fully set forth herein.

69. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

70. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, arresting citizens without probable cause and then committing perjury and/or engaging in falsification and/or manufacturing evidence in an effort to convict such individuals. In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of plaintiff JOSE RIVERA’S rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

71. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff JOSE RIVERA.

72. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff JOSE RIVERA as alleged herein.

73. As a result of the foregoing customs, policies, usages, practices, procedures and

rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff JOSE RIVERA was unlawfully arrested.

74. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff JOSE RIVERA'S constitutional rights.

75. All of the foregoing acts by defendants deprived plaintiff JOSE RIVERA'S of federally protected rights, including, but not limited to, the right:

- A. To be free from false arrest/unlawful imprisonment;
- B. To be free from falsification of evidence; and
- C. To be free from malicious prosecution;

76. As a result of the foregoing, plaintiff JOSE RIVERA is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, plaintiff JOSE RIVERA demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: New York, New York
March 16, 2020

BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiff
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By: Brett Klein
BRETT H. KLEIN

ATTORNEY VERIFICATION

BRETT H. KLEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at law firm of BRETT H. KLEIN, ESQ., PLLC, attorneys for the plaintiff JOSE RIVERA. I have read the annexed SUMMONS and VERIFIED COMPLAINT, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not the plaintiff is that plaintiff does not reside in the county wherein the undersigned maintains my law office.

Dated: New York, New York
March 16, 2020

Brett Klein

BRETT H. KLEIN

SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOSE RIVERA,

Plaintiff,

-against-

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Defendants.
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SUMMONS AND VERIFIED COMPLAINT

BRETT H. KLEIN, ESQ., PLLC
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